1932

Executive Order

RULES AND REGULATIONS GOVERNING THE ISSUANCE OF PERMITS TO ENTER AND LEAVE THE UNITED STATES.

Supplemental to the Presidential Proclamation of August 8, 1918, and by virtue of the authority set forth therein, I hereby prescribe the following rules and regulations governing departure from and entry into the United States.

Section 1.

The present system of controlling entry into and departure from the United States by alien enemies and other persons, as administered by the Department of State, the Department of the Treasury, the Department of Justice, the Department of Commerce, and the Department of Labor, is hereby confirmed and established by virtue of the authority vested in me as aforesaid and shall continue in full force and effect in the continental United States as defined herein until six o'clock in the forenoon of September 15, 1918, and in the outlying possessions of the United States until such time or times as the Secretary of State shall designate; when the following rules and regulations shall become operative and shall supersede all rules, regulations, and orders of the present system inconsistent with them; but the Secretary of State may direct at any time subsequent to the date hereof that seamen be kept on their vessels. (See Section 10 (c), *infra*.) The Secretary of State is hereby authorized, in his discretion, to prescribe exceptions to these rules and regulations governing the entry into and departure from the United States of citizens and subjects of the nations associated with the United States in the prosecution of the war.

TITLE I.

Definitions.

Section 2.

The term "United States" as defined in the Act of May 22, 1918, and as used herein includes the Canal Zone and all territory and waters, continental and insular, subject to the jurisdiction of the United States.

Section 3.

The term "continental United States" as used herein includes the territory of the several States of the United States and Alaska.

Section 4.

The term "departure from the United States" as used herein includes, in addition to any entry whatever upon foreign territory or waters, any trip or journey on or over (1) the Great Lakes or their connecting waters, (2) any rivers or other waters coinciding with or covering the boundary of the United States, or (3) tidal waters beyond the shore line of the United States, said shore line being hereby defined as the line of sea coast and the shores of all waters of the United States and its territorial possessions connected with the high seas and navigable by ocean going vessels. Provided, however, that no trip or journey upon a public ferry having both termini in the United States and not touching foreign territory or waters shall be deemed a departure from the United States.

Section 5.

The term "passport" as used herein includes any document in the nature of a passport issued by the United States or by a foreign government, which shows the identity and nationality of the individual for whose use it was issued and bears his signed and certified photograph.

Section 6.

The granting of a "permit" or "permission" to leave or enter the United States, as the terms are used herein, shall be construed to include the granting of a license under Section 3 (b) of the "Trading with the Enemy Act" whenever such license is essential to the lawful transportation of the person to whom the permit is granted. Wherever it is provided explicitly or by implication that any person may depart from or enter the United States without a permit or permission under these regulations, such provision of itself shall be construed as a license under said Section 3 (b) authorizing the transportation of such persons within the limits covered by the provision.

Section 7.

The term "seaman" as used herein includes, in addition to the persons ordinarily described thereby, sea-going fishermen and all owners, masters, officers, and members of crews and other persons employed on vessels which for purposes of business or pleasure cruise on tidal waters beyond the shore line or on the Great Lakes.

Section 8.

The term "hostile aliens" includes—

(a) All persons who are alien enemies as now or hereafter defined by statute; or by proclamation of the President; and

(b) All subjects or citizens of enemy or ally of enemy nations.

TITLE 2.

Limitations upon and Exceptions to the Application of the Act of May 22, 1918.

Section 9.

The following general limitations upon and exceptions to the application of the Act of May 22, 1918, are authorized and prescribed:

(a) No passports or permits to depart from or enter the United States shall be required of persons *other than hostile aliens* travelling between ports of the continental United States on vessels making no intermediate calls at foreign or non-continental ports. *Hostile aliens must obtain permits for all departures from, and entries into, the United States.*

(b) No passports or permits to depart from or enter the United States shall be required of persons *other than hostile aliens* travelling between points in the continental United States and points in Canada or Bermuda, or passing through Canada on a trip between two points in the continental United States, except as provided and required by Title 3 of these regulations. This exception is not applicable to persons going from the continental United States via Canada to other places outside of the continental United States. Persons *other than hostile aliens* starting from Newfoundland for the United States shall not be required to obtain visas or verifications from the American Consul in Newfoundland. (As to hostile aliens, see 9 (a), *supra.*)

(c) No passports or permits to depart from or enter the United States shall be required of persons in or attached to the military or naval forces of the United States or of any nation associated with the United States in the prosecution of the war, provided that such persons when in or attached to the military or naval forces of a nation so associated with the United States shall be identified and vouched for to the Secretary of State by a duly authorized representative of such nation; and provided further that when persons in or attached to such military or naval forces travel separately or otherwise than in regular commands they shall bear certificates issued by the War or Navy Department of the United States or by a duly authorized representative of an associated nation, adequately establishing the identity of the bearers and their connection with the military or naval forces aforesaid. Nothing herein shall be construed to prevent a citizen of the United States, if a member of or attached to the military or naval forces of any country, from entering or leaving the United States provided he bears a valid passport in lieu of the certificate of identification above described. All such departures shall, however, be subject to the requirements of Title 3 of these regulations. The limitations and exceptions aforesaid are subject to the provisions of Section 38 hereof.

Section 10.

The following limitations upon and exceptions to the application of Section 1, subsection (a) of the Act of May 22, 1918, are prescribed:

(a) Aliens need not present permits in the usual form for travel across the Mexican border provided that they bear valid permits to cross and recross the border at specified points issued by an immigrant inspector. In applying for these border permits they shall fill out such forms, furnish such photographs, and answer such inquiries as the immigrant inspector shall require. The special permits so issued shall be valid for travel across the Mexican border for such limited period and for passage across the border at such specifically defined points as the issuing inspectors shall note on the permits. Except as otherwise provided by the Secretary of State, such permits shall be issued only to persons residing within ten miles

of the border and shall be valid for travel only to points not more than ten miles beyond the border. Aliens entering Mexico with border permits must have such permits visaed by a diplomatic or consular representative of the United States in Mexico before returning to the United States unless the Secretary of State shall otherwise provide. Hostile aliens shall not be given permits to cross the Mexican border without special authorization from the Secretary of State.

(b) Hostile aliens residing in Canada or the United States may secure special permits allowing them to cross the border between the two countries by making application therefor to the representative of the Bureau of Immigration of the Department of Labor stationed nearest their place of residence. In applying for such permits they shall fill out such forms, furnish such photographs and answer such inquiries as the official receiving the application shall require. The special permits so issued shall be valid for such limited period, for passage across the border at such specifically defined points, and for such number of crossings as the issuing officials shall note on the permits.

(c) Aliens who are seamen on vessels arriving at ports of the United States and who desire to land in the country shall apply to an immigrant inspector. They shall submit to such immigrant inspector satisfactory evidence of their nationality and furnish such photographs and execute such forms and applications as the immigrant inspector shall require. The immigrant inspector may thereupon issue identity cards authorizing such seamen to land in the United States, unless the Secretary of State directs that they be kept on their vessels.

(d) Alien seamen desiring to sail from the United States shall submit satisfactory evidence of nationality to the United States customs inspectors stationed at the port of departure. If such applicants have landed in the United States since the date on which these regulations became effective at their port of arrival they shall further submit the identity cards issued by the immigrant inspector permitting them to land in the country. Said identity cards shall be stamped by the customs officials, if permission is given the applicants to depart, and such cards so stamped shall be the evidence of such permission. In case an applicant for permission to sail under this paragraph has not entered the United States since these regulations became effective, he shall apply to a collector of customs for an identity card and permission to sail. In making such application he shall submit satisfactory evidence of his nationality and furnish such photographs and execute such forms and applications as the collector of customs shall require.

(e) Identity cards issued to alien seamen as provided by the foregoing paragraphs (c) and (d) shall be retained by the seamen to whom they are issued and used by the holders from time to time as they land in and sail from the United States. An alien seaman bearing such card shall have the same validated for landing or sailing by the immigration or customs authorities respectively on each occasion when he applies for permission to land at or sail from a United States port.

(f) Aliens passing through the United States en route between two foreign points and not remaining in the United States more than thirty days shall make application for permission to depart through the immigration official acting as control officer at the point where they enter the United States. Such permission, if granted, will be given by the official acting as control officer at the designated point of departure. Nothing herein shall be construed as requiring a permit for departure from a transient alien in case such permit would not have been necessary if the journey to his final destination had commenced in the United States. A transient will be required to depart from the United States at the earliest date practicable. He shall submit to the immigrant inspector his itinerary to the port of departure, which shall be by the most direct route reasonably available, and upon obtaining approval of the same, he shall proceed immediately to the port of departure. Upon arrival at said port, he shall report forthwith to the customs officers. For all deviations and delays special permission must be obtained from the Secretary of State.

(g) No permits to depart from or enter the United States shall be required of officials or representatives of foreign countries duly accredited to the United States or a friendly country provided that such persons bear valid passports and provided further that the Department of State is notified in advance of their intended entry or departure and consents thereto. Such officials, however, when desiring to enter the United States

shall have their passports visaed by a diplomatic or consular officer of the United States in the country from which they come and in the country from which they embark for or enter the United States; and such officials desiring to depart from the United States shall have their passports visaed by the Department of State.

Nothing in the foregoing paragraphs (a) to (g) inclusive shall be construed to prevent the entry or departure of an alien at the Mexican or Canadian border, of an alien seaman at a United States port, or of a transient alien at any point, provided he bears a valid permit for such entry or departure issued in accordance with Title 6 or Title 7 hereof.

Section 11.

The following limitations upon and exceptions to the application of Section 2 of the Act of May 22, 1918, are authorized and prescribed:

(a) Citizens of the United States travelling between United States ports not within the continental United States, or between such ports and ports within the continental United States, on vessels making no intermediate calls at foreign ports other than those of Canada, or Bermuda, shall not be required to bear passports provided that they have received from the immigrant inspector at the port of departure United States citizens' identity cards. Applicants for such cards shall supply such photographs and execute such forms and applications as the immigrant inspectors require. When applications for such cards are made in dependencies of the United States where no immigrant inspectors are stationed they shall be made to the Governors of such dependencies or their representatives duly appointed for the purpose: provided that employees of the Panama Canal and the Panama Railroad Company and members of their families, civilian employees of the United States and members of their families, and the families of members of the Army and Navy, travelling between the continental United States and the Panama Canal Zone, may carry identity certificates issued by The Panama Canal in lieu of passports or identity cards issued by immigration officials.

(b) Citizens of the United States travelling across the Mexican border shall not be required, unless otherwise ordered by the Secretary of State, to bear passports provided that they have received citizens' identity cards from immigrant inspectors at the points where they depart from or enter the United States. Such identity cards shall be applied for in accordance with the preceding paragraph (a). Except as otherwise provided by the Secretary of State, such identity cards shall be issued only to persons residing within ten miles of the border and shall be valid for travel to points not more than ten miles beyond the border. Citizens entering Mexico without passports and with identity cards must have such cards verified by a diplomatic or consular representative of the United States in Mexico before returning to the United States, unless the Secretary of State shall otherwise provide.

(c) Citizens of the United States who are seamen upon vessels entering or leaving ports of the United States shall not be required to bear passports provided that they bear seamen's certificates of American citizenship issued by collectors of the ports of the United States as provided for in Section 4588 of the Revised Statutes. Citizens applying for such certificates shall supply such photographs and execute such forms and applications as the collectors shall require. No identity card other than a passport or a seamen's certificate shall be issued to a seaman who is a citizen of the United States.

Nothing in the foregoing paragraphs (a), (b), and (c) shall be construed to prevent the use of a valid passport by any seaman or other citizen referred to in said paragraphs in lieu of a seamen's certificate or identity card as described therein.

TITLE 3.

General Regulations.

Persons Liable to Military Service.

Section 12.

No person registered or enrolled or subject to registry or enrollment for military service in the United States shall depart from the United States without the previous consent of the Secretary of War or such person or persons as he may appoint to give such consent. The Secretary of State shall issue no

passport or permit entitling such person to depart without securing satisfactory evidence of such consent. Reference should be had to Section 156, Selective Service Regulations, and amendments thereto.

TITLE 4.

American citizens: Departure and Entry.

Section 13.

Issue of Passports.

The "Rules Governing the Granting and Issuing of Passports in the United States" as established on January 24, 1917, are continued in force without change.

Section 14.

Verification of Passports in Foreign Countries.

Passports are not valid for return to the United States unless verified in the country from which the holder starts on his journey to the United States and further verified in the foreign country from which he embarks for or enters the United States. No fee shall be collected by diplomatic or consular officers of the United States for or in connection with such verification.

ALIENS' PERMITS TO DEPART AND ENTER.

TITLE 5.

Permit Agents.

Section 15.

The officials designated in the appendix hereto are hereby appointed Permit Agents for the purpose of receiving from aliens applications for permits to depart from the United States. No Permit Agents have been designated in Tutuila, Manua, Guam, or Wake Island, as it is believed that travel from these points will not necessitate such appointments. For the time being persons desiring to leave any of these insular possessions may do so without securing permission hereunder.

Section 16.

Representatives of the Bureau of Immigration of the Department of Labor, stationed in Canada or on the Canadian border, and all diplomatic and consular officers of the United States in foreign countries are hereby appointed Permit Agents for the purpose of receiving from aliens applications for permits to enter the United States.

Section 17.

The Secretary of State is authorized to designate and appoint additional Permit Agents from time to time as he may deem advisable, and to revoke their appointments or the appointments of any Permit Agent aforementioned. All Permit Agents hereby or hereafter appointed are hereby authorized to administer any oath or affirmation required in these rules and regulations or in any amendment hereof or addition hereto. All persons empowered to issue special permits referred to in sections 10 and 11 hereof are hereby authorized to administer to applicants any oaths or affirmations deemed necessary in connection with their applications.

TITLE 6.

Permits to Depart.

Section 18.

Except in cases for which special regulations are hereinbefore provided, any alien desiring to depart from the United States shall apply for a permit to the Permit Agent located nearest to the last residence of the applicant. Any Permit Agent is authorized to receive an application to depart if it appears that the applicant would be caused unreasonable hardship or delay if required to apply to the Permit Agent nearest his last residence.

Section 19.

Each applicant shall submit to the Permit Agent, for transmission to Washington if required, a passport issued for his use by the Government to which he owes allegiance or by a duly authorized diplomatic or consular officer thereof, or of the country representing in the United States the interests of his country. Such passports must have been issued, renewed or visaed by a duly authorized representative of said Government, or of the country representing its interests in the United States, within ten days prior to the time of the application. Aliens who by reason of doubtful nationality, lack of nationality, or any other cause, are unable to secure passports may be granted permission to depart in the discretion of the Secretary of State.

Section 20.

If the application is made to a Permit Agent located east of the Mississippi River, the application shall be made at least fourteen and not more than twenty-eight days before the date set for departure. If the Permit Agent is located west of the Mississippi River, the application shall be made at least eighteen days and not more than twenty-eight days before the date set for departure. In special cases additional time will be required for adequate investigation.

Section 21.

Applications for permission to depart from the United States shall be made upon forms provided for the purpose by the Permit Agents and shall be executed by applicants according to the instructions printed thereon. Substantial copies of such forms and instructions are contained in the Appendix to these regulations.

Section 22.

Applications shall be executed in triplicate. All copies shall be personally signed and sworn to by the applicant before the Permit Agent. The Permit Agent shall fill in the name of the applicant on the left hand margin of the application, and also the blanks for applicant's description. The remainder of the application need not be filled out by or in the presence of the Permit Agent. If the applicant has conscientious scruples against taking an oath, he may make affirmation to the truth of his statements and answers in the application.

Section 23.

Each application shall be accompanied by four unmounted photographs of the applicant, not smaller than two by two inches nor larger than three by three inches in size, on thin paper with a light background. If the applicant is able to write, he shall sign all four photographs across the front thereof so as not to obscure the features.

Section 24.

A married woman accompanying her husband, or a child or children under fourteen years of age accompanying either parent, may be included in the permit granted to the husband or parent and in such case will not be required to make a separate application. Photographs of persons so included in a husband's or parent's application must be furnished. Group photographs may be used in such cases.

Section 25.

Every applicant shall furnish to the Permit Agent, in addition to any particulars required to be inserted in answer to the printed questions on the application blank, any information which may reasonably be required for the purpose of passing upon his application or for ascertaining the correctness of the particulars stated thereon or otherwise.

Section 26.

Upon complying with these regulations, an applicant shall receive from the Permit Agent a card showing that the application for permission to depart has been filed. This card is not a permit to depart from the United States but is merely a receipt for the application, and for the passport if that has been retained.

Section 27.

Within seven days prior to the proposed date of departure from the United States, the applicant shall again appear before the Permit Agent who received his application. At this time, or as soon thereafter as his case is decided, he

shall receive back his passport and, if permission to depart from the United States is granted, the Permit Agent shall affix applicant's photograph to the receipt card previously issued and shall note thereon the fact that such permission has been given. The card then becomes a provisional permit to depart from the United States and must be preserved carefully for presentation to the proper officials at the point of departure. Such provisional permit is subject to revocation at any time without notice.

Section 28.

An applicant desiring to leave the place where he makes application for permission to depart before receiving notice of the final action may arrange with the Permit Agent at the time of application that the provisional permit to depart, if granted, shall be given through a Permit Agent at some other point. The application receipt card, in such case, shall contain a note to the effect that final action is to be taken by another designated Permit Agent. In such case, the applicant shall apply to the Permit Agent thus designated for notice of decision.

Section 29.

A similar request for a change of Permit Agent may be made subsequently to the filing of the application. A request so made may be received by any Permit Agent but will not be granted without express authorization from the Secretary of State;

Section 30.

Permits to depart from the United States will be granted to applicants by or under the authority of the Secretary of State when it shall appear that there is reasonable necessity for such departure, and when upon investigation, such departure is deemed to be not prejudicial to the interests of the United States.

TITLE 7.

Permits to Enter.

Section 31.

Subject to the exceptions and limitations hereinbefore setforth no alien shall be allowed to enter the United States unless he bears a passport duly visaed in accordance with the terms of the Joint Order of the Department of State and the Department of Labor issued July 26, 1917. Said Joint Order and the amendments thereto and instructions issued thereunder are hereby confirmed and made part hereof by reference, so far as their provisions are not inconsistent with these rules and regulations or with the President's Proclamation of August 8, 1918. A copy of said Joint Order is inserted in the Appendix to these regulations.

Section 32.

In accordance with the provisions of the Presidential Proclamation of August 8, 1918, a visa will be granted only when it shall appear that there is reasonable necessity for entering the United States and when upon investigation such entry is deemed to be not prejudicial to the interests of the United States.

Section 33.

As a restriction additional to those provided by said Joint Order, hostile aliens shall not enter the United States from Canada unless they either secure visas in the manner prescribed by the Joint Order, or secure permits in the manner prescribed by Title 2, Section 10, paragraph (b), of these regulations.

Section 34.

An alien's passport duly visaed together with a copy of the declaration required by said Joint Order shall constitute a permit to enter the United States within the meaning of the Act of May 22, 1918.

Section 35.

Diplomatic and consular officers of the United States are authorized to collect the following fees:

For visaing each foreign passport (not including passports of officials)	$1.00
For preparing visa declaration and administering oath	$1.00
For certifying to a copy of a visa declaration previously taken	$1.00

TITLE 8.

Control at Point of Entry and Departure.

Section 36.

The actual control of persons departing from the United States at all seaboard and lake ports shall be exercised by the representatives of the customs service of the Department of the Treasury, who shall act as control officers for this purpose. The actual control of persons departing from the United States by land and of all persons entering the United States shall be exercised by the representatives of the Bureau of Immigration of the Department of Labor, who shall act as control officers for this purpose. The Secretary of State may from time to time designate other persons to act as control officers at any place. In all cases where passports or/and permits to enter or depart are required under these regulations each traveller before entering or departing from the United States shall present his passport or/and permit to the Control Officer at the point of entry or departure. He shall also answer such questions and undergo such examination as the Control Officer shall direct. If, as the result of such questioning and examinations, the Control Officer decides that the entry or departure of the holder of the passport or permit would be prejudicial to the interests of the United States, such person shall not be allowed to enter or depart. Under such circumstances the Control Officer shall immediately notify the Seretary of State by telegraph of his decision and shall as soon as practicable, and in no case later than two days after such decision, forward to the Secretary of State a full report giving the reasons for detention and a full transcript of any testimony or information bearing on such decision.

Section 37.

If the Control Officer shall be satisfied that the permit and passport are valid and regular and have been properly visaed and that the holder presenting them is the person described therein, that neither of them has been altered or tampered with, and that the holder's departure or entry is not prejudicial to the interests of the United States, he shall allow the holder to depart from or enter the United States.

Section 38.

In addition to the control as above set forth of persons generally required to secure permission to depart from or enter the United States, control may be exercised over individuals belonging to classes of persons generally allowed to depart or enter without permits or passports. A Control Officer may temporarily prevent the departure or entry of any such individual, in case he considers such departure or entry prejudicial to the interests of the United States. Such action shall be immediately reported to the Secretary of State with a full statement of the reasons therefor. An individual so prevented from departing or entering shall not be entitled to the benefit of any of the limitations or exceptions contained in Section 9 hereof and his departure or entry is forbidden unless, if an alien, he obtains permission from the Secretary of State, or, if a United States citizen, he obtains a valid passport.

TITLE 9.

Additional Regulations.

Section 39.

The Secretary of State is authorized to make regulations on the subject of departure from and entry into the United States additional to these rules and regulations and not inconsistent with them.

WOODROW WILSON

THE WHITE HOUSE,
8 August, 1918.

[No. 2932.]